

10.2.7 Labelling of boxes when goods are opened or withdrawn.

When an original bottle or container is opened, it is to be labelled with label C. & E. No. 127 or 127a. If the bottle or container is not returned to the package before being cleared, label C. & E. No. 126, signed and dated by the officer, is to be placed in the vacant space. These directions are to be applied to bottles, packets, and all descriptions of package goods, which may be opened or withdrawn for reassessment, test or any other official purpose.

10.3 Official samples

10.3.1 Legal provisions

Officers may examine the goods in question and take samples for analysis or for detailed examination.

(Article 188 of the UCC refers)

Samples of goods for examination, for ascertaining the duties payable or for any purpose felt necessary, may be taken, disposed of and accounted for in a manner as Revenue sees fit.

(Section 28, Customs Act, 2015 refers)

10.3.2 General

In cases of high value goods and where no irregularity is suspected, the relevant HEO is to be consulted before sampling. Where it has been decided that samples are to be taken, the declarant or their representative is to be so informed.

(Article 239 of the UCC IA refers)

10.3.3 Record of samples

A record of samples sent for testing and their subsequent disposal is to be kept at each office in the Sample Register (C. & E. No. 131).

Samples are normally to be taken by Revenue officials. The declarant or a person designated may be requested to draw the sample under official supervision where considered appropriate.

(Article 240 of the UCC IA refers)

Where Revenue has permitted the declarant or his representative to be present at the taking of samples, he/she must give all the assistance needed.

(Article 189(2) of the UCC refers)